

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 14
JUDICIAL OFFICER: KIRK ATHANASIOU
HEARING DATE: 08/04/2026

For matters where an appearance is required, the parties should appear by Zoom unless told to appear by another method. For all other matters, if argument is requested appearances may be in person or by Zoom.

Please email Dept14@contracosta.courts.ca.gov and opposing counsel by 4:00 p.m. if oral argument is requested, the requesting party shall specify the issues to be argued.

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/16103009385?pwd=TjFZRDBnNkVQRIV0Znhvai9qT05tZz09#success>

Law & Motion

1. 9:00 AM CASE NUMBER: L24-08932
CASE NAME: CITIBANK, N.A. VS. DOMINIC COSMI
*HEARING ON MOTION IN RE: NOTICE OF MOTION AND MOTION TO ENTER JUDGMENT
PURSUANT TO STIPULATION
FILED BY: CITIBANK, N.A.
*TENTATIVE RULING

Background

Plaintiff filed, on 5/1/26, a Motion to enter judgment pursuant to stipulation.

The Motion is unopposed, but the proof of service indicates mail service to address in Concord. The problem, however, is that there was never service of process in this matter, and no other evidence to suggest that this mailing address is indeed that of the Defendant.

Thus, this court finds that there is no service of this Motion.

Disposition

This Motion will be continued to 9/8/26, 9am.

Plaintiff to properly notify Defendant of Motion and hearing date.

2. 9:00 AM CASE NUMBER: L24-10338

CASE NAME: CROWN ASSET MANAGEMENT, LLC VS. BRIAN LAM

***HEARING ON MOTION IN RE: NOTICE OF MOTION TO VACATE DEFAULT JUDGMENT FILED BY PLN
ON 4/29/26**

FILED BY: CROWN ASSET MANAGEMENT, LLC

***TENTATIVE RULING**

Plaintiff filed a Motion to set aside a judgment, out of the interests of justice.

The Motion was served on a mailing address for Defendant that was also listed on the Answer.

On 1/14/26, this court rendered a judgment in favor of Plaintiff in the amount of \$31,312.09, with costs of \$443.55.

In their Motion, Plaintiff cites the fact that Defendant had begun the process of bankruptcy, unbeknownst to Plaintiff.

Disposition

Plaintiff's Motion is granted.

This matter will be stayed.

A CMC will be scheduled for 1/27/27, 830 am, to check on the status of the bankruptcy proceeding.

Plaintiff to file Order, and serve copy of filed Order on Defendant.

3. 9:00 AM CASE NUMBER: L25-00011

CASE NAME: DISCOVER BANK VS. JUAN CRUZ

***HEARING ON MOTION IN RE: NTC AND MTN TO VACATE JUDGMENT**

FILED BY: CRUZ, JUAN

***TENTATIVE RULING**

Defendant has filed a Motion to set aside the judgment. But there is no proof that Defendant provided any notice to the Plaintiff.

Disposition

This Motion will be continued to 9/8/26, 9am.

Defendant to provide notice of Motion and hearing date to Plaintiff.

4. 9:00 AM CASE NUMBER: L25-01107
CASE NAME: BANK OF AMERICA N.A. VS. CELIA MELCHOR
*HEARING ON MOTION IN RE: TO VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF
STIPULATED SETTLEMENT
FILED BY: BANK OF AMERICA N.A.

TENTATIVE RULING:

Background

Plaintiff filed, on 5/20/26, an amended Motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Mail service was completed at an address for counsel of Defendant.

Analysis

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$12,336, plus costs, and less any credits for payments received.

The agreement was filed with the court.

The case was then dismissed.

The Defendant made payments of \$0.

Costs are \$873.61.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$13,209.61.

Plaintiff to file order on Motion, as well as submit Judgment, and to serve filed copies on Defendant.

5. 9:00 AM CASE NUMBER: L25-01414
CASE NAME: BANK OF AMERICA N.A. VS. JIMMY COBB
*HEARING ON MOTION IN RE: MOTION TO BE RELIEVED AS COUNSEL FILED BY ALEXANDER PENLEY
FOR DEF ON 5/1/26

FILED BY: COBB, JIMMY L

***TENTATIVE RULING**

Counsel for Defendant has filed a Motion to withdraw. Counsel provided a declaration indicating that he served Defendant at the client's last known address.

After reviewing the Declaration, this court finds good cause to allow Mr. Penley to withdraw as counsel for Defendant.

Mr. Penley shall file the Order, and provide notice to Defendant.

6. 9:00 AM CASE NUMBER: L25-02002

CASE NAME: DISCOVER BANK VS. LISA KLEIN

***HEARING ON MOTION IN RE: NOTICE OF MOTION AND MOTION TO ENTER JUDGMENT
PURSUANT TO STIPULATION**

FILED BY: DISCOVER BANK

***TENTATIVE RULING**

Background

Plaintiff filed, a motion to enter judgment pursuant to stipulation.

The proof of service indicates mail service on the Defendant, but there's no evidence of Defendant residing at this address. There is no Answer; no proof of service of process.

In addition, though Plaintiff has attached a purported written agreement between the parties to their Motion, the page which is alleged to have Defendant's signature (p.12 of Motion) is of incredibly poor quality, and is not very legible.

Disposition

This Motion will be continued to 9/15/26, 9am.

Plaintiff to notify Defendant of Motion and hearing date.

Plaintiff to provide clearer copy of any written agreement reflecting the signature of the Defendant.

7. 9:00 AM CASE NUMBER: L25-03590

CASE NAME: ABSOLUTE RESOLUTIONS INVESTMENTS, LLC VS. EMMANUEL GARCIA

***HEARING ON MOTION IN RE: MOTION FOR ENTERING JUDGMENT PURS TO DEF DEFAULT UNDER
STTLMNT FILED 4/27/26 BY PLN**

FILED BY: ABSOLUTE RESOLUTIONS INVESTMENTS, LLC

TENTATIVE RULING:

Background

Plaintiff filed a Motion, on 4/27/26, to vacate dismissal and enter judgment pursuant to stipulation, along with a Declaration. The Motion and its supporting documents are timely.

This Motion is unopposed.

Mail service was completed at an address for counsel of Defendant.

Analysis

The parties entered into a CCP 664.6 agreement, reflected in Exhibit One of the Declaration, where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$2,245.54, plus costs, and less any credits for payments received.

The case was then dismissed.

The Defendant made payments of \$150.

Costs are \$340.96.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$2,436.50.

Plaintiff to file Order on Motion, as well as submit Judgment.

Plaintiff to serve Defendant with copy of filed Order.

8. 9:00 AM CASE NUMBER: L25-04551

CASE NAME: CAPITAL ONE, N.A. VS. LISA PERALTA

*HEARING ON MOTION FOR DISCOVERY FOR ORDER THAT MATTERS IN REQUEST FOR ADMISSION OF TRUTH OF FACT BE DEEMED ADMITTED

FILED BY: CAPITAL ONE, N.A.

TENTATIVE RULING:

Background

Plaintiff filed a Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion).

Plaintiff attached the particular facts at issue, numbered One through Eight and entitled, "Set One," in Exhibit One of their Motion, as well as proof that they served Defendant with the discovery request, and declared that Defendant never responded to the request.

Plaintiff attached a proof of service of this Motion, indicating mail service to counsel for Defendant.

No response has been filed by the Defendant.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in Exhibit One of Plaintiff's moving papers shall be deemed admitted.

Defendant is sanctioned in the amount of \$460.

Plaintiff to file Order and serve copy of filed Order on Defendant.

9. 9:00 AM CASE NUMBER: L25-10349

CASE NAME: CAPITAL ONE, N.A. VS. JAMISON JENSEN

*HEARING ON MOTION IN RE: TO VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT

FILED BY: CAPITAL ONE, N.A.

***TENTATIVE RULING**

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. There is a proof of service indicating notice by mail of the motion and hearing, but there is no evidence corroborating that the mailing address is in fact that of Defendant. Defendant never filed an Answer, and there is no acknowledgement of receipt of the notice of this motion.

Thus, this court finds that Plaintiff has failed to properly notify Defendant of this motion and its hearing.

Disposition

Motion will be continued to 10/20/26, 9am.

Plaintiff is ordered to properly notify Defendant of the motion as well as the date of the hearing.

10. 9:00 AM CASE NUMBER: L25-10658

CASE NAME: JPMORGAN CHASE BANK N.A. VS. GRANT GANGUET

***HEARING ON MOTION FOR DISCOVERY NOTICE OF MOTION AND MOTION FOR ORDER THAT MATTERS IN REQUEST FOR ADMISSION OF TRUTH OF FACTS BE DEEMED ADMITTED**

FILED BY: JPMORGAN CHASE BANK N.A.

TENTATIVE RULING:

Background

Plaintiff filed a Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion).

Plaintiff attached the particular facts at issue, numbered One through Eight and entitled, "Set One," in Exhibit One of their Motion, as well as proof that they served Defendant with the discovery request, and declared that Defendant never responded to the request.

Plaintiff attached a proof of service of this Motion, indicating mail service to Defendant at the address listed on Defendant's Answer.

No response has been filed by the Defendant.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in Exhibit One of Plaintiff's moving papers shall be deemed admitted.

Plaintiff to draw and file Order.

11. 9:00 AM CASE NUMBER: L25-10679

CASE NAME: JPMORGAN CHASE BANK N.A. VS. GRANT GANGUET

***HEARING ON MOTION FOR DISCOVERY NOTICE OF MOTION AND MOTION FOR ORDER THAT MATTERS IN REQUEST FOR ADMISSION OF TRUTH OF FACTS BE DEEMED ADMITTED; MEMORANDUM IN SUPPORT OF MOTION**

FILED BY: JPMORGAN CHASE BANK N.A.

TENTATIVE RULING:

Plaintiff filed a Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion).

Plaintiff attached the particular facts at issue, numbered One through Eight and entitled, "Set One," in Exhibit One of their Motion, as well as proof that they served Defendant with the discovery request, and declared that Defendant never responded to the request.

Plaintiff attached a proof of service of this Motion, indicating mail service to Defendant at

the address listed on Defendant's Answer.

No response has been filed by the Defendant.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in Exhibit One of Plaintiff's moving papers shall be deemed admitted.

Plaintiff to draw and file Order.

12. 9:00 AM CASE NUMBER: L25-11039
CASE NAME: WELLS FARGO BANK, N.A. VS. JEANETTE BASTIDAS
*HEARING ON MOTION IN RE: MOTION FOR ORDER DEEMING TRUTH OF MATTERS SPECIFIED IN
REQ FOR ADMISSIONS ADMITTED
FILED BY: WELLS FARGO BANK, N.A.

TENTATIVE RULING:

Background

Plaintiff filed a Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion), along with a Declaration.

Plaintiff attached the particular facts at issue, numbered One through Nine and entitled, "Set One," in Exhibit One of their Declaration, as well as proof that they served Defendant with the discovery request, and declared that Defendant never responded to the request.

Plaintiff attached a proof of service of this Motion, indicating mail service to Defendant at the address for counsel of Defendant.

No response has been filed by the Defendant.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in Exhibit One of Plaintiff's moving papers shall be deemed admitted.

Plaintiff to draw and file Order and serve a copy of the filed Order on Defendant.

13. 9:00 AM CASE NUMBER: L26-03042
CASE NAME: CROWN ASSET MANAGEMENT, LLC VS. OLGA GORINOFF
HEARING IN RE: MOTION TO QUASH SERVICE
FILED BY:

TENTATIVE RULING:

Background

Defendant filed a Motion to Quash the Summons, along with accompanying documents, arguing that service of process was invalid.

Specifically, Defendant claims that she was never personally served, and that the substitute service was invalid because the server delivered the documents to the wrong address. Though the proof of service reflects that a registered process server served process on the co-resident of 121 Bellflower Ct., Defendant contends that service actually occurred at 115 Bellflower.

The Defendant indicates that the resident of 115 Bellflower provided the process documents to Defendant on 4/21/26.

The Motion is unopposed.

Defendant notified Plaintiff of this Motion and hearing by mail in a timely manner

Analysis

A defendant can move to quash service of the summons if service of the service is not valid. *Code of Civil Procedure Section 418.10(a)(1)*. A defendant's actual knowledge of the action does not dispense with the statutory requirement of service of the summons. *Kappel v. Bartlett* (1988) 200 CA3d 1457, 1466.

When a defendant moves to quash the summons on the basis of invalid service, "[T]he burden is on the plaintiff to prove ... the fact requisite to an effective service." *Summers v. McClanahan* (2006) 140 CA4th 403, 413.

However, service that is done by a registered process server raises a presumption of valid service, shifting the burden to the Defendant. See *Floveyor Internat., Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 795.

In the instant matter, even assuming for the sake of argument that personal service did not occur, and that substitute service was not done properly, the Defendant appears to concede that she, in fact, received copies of the Summons and Complaint.

This suggests to the court that, by a preponderance of the evidence, Defendant has been served with process.

The court will grant leave to file his Answer within 10 days of this 8/4/26

Disposition

Defendant's Motion is denied.

However, Defendant to file Answer within 10 days of 8/4/26.

Court to file Order.

14. 9:00 AM CASE NUMBER: MSL18-05654
CASE NAME: WILSHIRE COMMERCIAL CAPITAL, LLC VS PEELER
HEARING IN RE:
FILED BY:

TENTATIVE RULING:

Defendant filed a Motion to Set Aside Entry of Default and Default Judgment.

Plaintiff filed a Response in opposition.

Background

Defendant cites Section 473(d) of the CCP as authority for the Motion, contending that he did not actually receive notice of process.

The procedural history of this case is that default judgment was entered in this county in 2019. The court takes judicial notice of this filing (specifically, 6/3/19).

Analysis

Authority for a court to set aside a default judgment lies in at least two different statutes of the CCP.

Section 473.5 of the CCP permits the court to set aside a default judgment where it finds that the defendant was not given actual notice of the process. There is a limitation within which Defendant can seek relief under this section, however, and that is no later than two years after the entry of the default judgment. (Section 473.5(a) of CCP.)

Section 473 of the CCP also grants this power. When a judgment was not the result of the party's mistake, negligence, inadvertence or surprise, the court can still grant a request to set aside a default judgment if it voids that the judgment is otherwise void. (See Sections 473(b) and 473(d).) While requests hinging on reasons of mistake or inadvertence have time limitation of 180 days, those for a void judgment do not have such a limitation.

However, what renders a judgment void such that it falls within the purview of Section

473(d) is relatively narrow.

"After six months ... an otherwise valid judgment may only be set aside for extrinsic fraud or mistake. Extrinsic fraud occurs when a party is deprived of his opportunity to present his claim or defense to the court, where he was kept in ignorance or in some other manner fraudulently prevented from fully participating in the proceeding. Examples of extrinsic fraud are: concealment of the existence of a community property asset, failure to give notice of the action to the other party, convincing the other party not to obtain counsel because the matter will not proceed (and it does proceed) ... Extrinsic mistake involves the excusable neglect of a party. When this neglect results in an unjust judgment, without a fair adversary hearing, and the basis for equitable relief is present, this is extrinsic mistake. Reliance on an attorney who becomes incapacitated, or incompetence of the party without appointment of a guardian ad litem, are examples of extrinsic mistake." (*In re Marriage of Varner* (1997) 55 Cal.App.4th 128, 140. (superseded by statute only in matters of family law).)

The only plausible theory for Defendant in the instant matter would be that the lack of actual notice, assuming it is true, resulted in excusable neglect, which qualifies as excusable mistake under Section 473(d), and thus permits Defendant to request a set aside at any time.

But this court finds such a construction of the statute to be incorrect. First, a lack of notice was certainly not one of the examples listed in *Verner*, but more importantly, to lend the statute Defendant's interpretation would be to make CCP 473.5 superfluous. What would be the necessity of CCP 473.5 and its time limitation when a defendant can simply make the identical claim at any time under CCP 473(d)? This clearly was not the intent of the legislature, and would contravene the canons of statutory interpretation.

This court finds that a default judgment where there was no actual notice to the defendant, but the defendant failed to raise the claim within two years of the date of entry of default, does not qualify as void judgment under Section 473(d).

Disposition

Defendant's Motion is denied.

Plaintiff to file Order, and to serve copy of filed Order on Defendant.